BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA — HAYWARD HALL OF JUSTICE

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. SANTIAGO MEZA-GONZALEZ; JOSE MELANO; STATE OF CALIFORNIA / CALIFORNIA HIGHWAY PATROL; and DOES 1-10, Defendants.	**Case No. 26CV168913** **REQUEST FOR DISMISSAL WITHOUT PREJUDICE** [Code Civ. Proc., § 581(b)(1), (c)] Assigned to: Hon. Mark Fickes Dept. 518 Complaint Filed: Feb. 4, 2026 Action currently STAYED per Stipulation filed Apr. 14, 2026

TO THE CLERK OF THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that, pursuant to Code of Civil Procedure section 581, subdivisions (b)(1) and (c), Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, hereby requests dismissal, without prejudice, of the above-captioned action in its entirety, as to all Defendants, including SANTIAGO MEZA-GONZALEZ; JOSE MELANO; STATE OF CALIFORNIA / CALIFORNIA HIGHWAY PATROL; and DOES 1 through 10.

Plaintiff is entitled to this dismissal without leave of court because no Defendant has filed an answer or a cross-complaint in this action. (Code Civ. Proc., § 581, subd. (b)(1) [plaintiff may dismiss with a written request to the clerk where no answer or cross-complaint has been filed]; *id.*, subd. (c) [plaintiff may dismiss an entire complaint at any time before the actual commencement of trial, upon written request to the clerk].) No trial date has been set, and no Defendant has served or filed an answer, demurrer, or other responsive pleading; the anticipated demurrer noticed by the Attorney General's Office on April 2, 2026 was never briefed and its

filing was superseded by the April 14, 2026 stipulated stay, before any responsive pleading was filed.

On April 14, 2026, the parties stipulated, and the Court ordered, that this action be stayed in its entirety pending final resolution of the related federal action, *Newanforbi v. State of California, et al.*, No. 2:25-cv-01460-DC-CSK (E.D. Cal.) (the **"Federal Action"**). Concurrently with this Request, Plaintiff is filing a Notice of Voluntary Dismissal Without Prejudice of the Federal Action under Fed. R. Civ. P. 41(a)(1)(A)(i). Nothing in the April 14, 2026 stipulation or stay order restricts Plaintiff's independent, unilateral right under Code of Civil Procedure section 581 to dismiss this action without prejudice, and this Request is filed notwithstanding the stay because it terminates, rather than advances, the stayed proceedings.

Plaintiff further gives notice that entry of this dismissal will moot Plaintiff's pending Motion for U-Visa Certification, heard June 18, 2026 in Dept. 518 and currently awaiting ruling, as well as the July 6, 2026 Case Management Conference and all other dates suspended by the April 14, 2026 stay order. The Clerk is respectfully requested to reflect this Request for Dismissal in the register of actions, vacate all further proceedings, and close the file. This dismissal is **without prejudice** and does not operate as an adjudication on the merits of any claim. Each party shall bear its own costs and attorneys' fees, if any.

Dated: August 11, 2026

Respectfully submitted,

/s/ Brendan Ngehsi Newanforbi

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PROOF OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the State of California that on August 11, 2026, I caused a true and correct copy of the foregoing **REQUEST FOR DISMISSAL WITHOUT PREJUDICE** to be filed with the Clerk of the Alameda County Superior Court, Hayward Hall of Justice, 24405 Amador Street, Hayward, California 94544 (through the Court's e-filing system, to the extent Plaintiff is so registered), and to be served by electronic mail and/or United States first-class mail, postage prepaid, upon the following:

Counsel for Defendants:

Haiyang A. Li, Deputy Attorney General

Office of the Attorney General / Department of Justice

300 South Spring Street, Suite 1702, Los Angeles, CA 90013

Haiyang.Li@doj.ca.gov

cc: Adriana Zagal, Legal Secretary — Adriana.Zagal@doj.ca.gov

Executed on August 11, 2026, at Milpitas, California.

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per